

Postal address:
Box 8114
104 20 Stockholm
Website:
www.imy.se
Email:
imy@imy.se
Phone:
08-657 61 00
1(6)

COMPLAINANT

See appendix

SUPERVISION SUBJECT

Aller Media AB

Decision following supervision according to the
Data Protection Regulation – Aller Media AB

Decision of the Swedish Authority for Privacy Protection

The Swedish Authority for Privacy Protection (IMY) finds that Aller Media AB (556002-8325) has violated Article 6.1 f of the Data Protection Regulation by processing the complainant's personal data without a legal basis.

IMY issues a reprimand to Aller Media AB based on Article 58.2 b of the Data Protection Regulation.

Account of the supervisory matter

IMY has initiated supervision against Aller Media AB (Aller or the company) to investigate a complaint. The complaint is one of several complaints submitted to the European data protection authorities regarding cookies and cookie banners. The complaints primarily concern the design of cookie banners, the placement of cookies, and the subsequent processing of personal data after the cookies have been placed on the complainant's browser or device. To facilitate cooperation regarding these complaints, a working group (Cookie Banner Taskforce) was created within the European Data Protection Board (EDPB).

Given that this concerns cross-border processing, IMY has utilized the cooperation and consistency mechanisms outlined in Chapter VII of the Data Protection Regulation. The relevant supervisory authorities have been the data protection authorities in Austria, Denmark, and Italy.

The complainant has stated the following. Aller did not have a legal basis to process the complainant's personal data through the use of cookies on its website recept.se on May 21, 2021. There was neither a legitimate interest nor valid consent. By emphasizing in the cookie banner that consent is the legal basis, Aller has led users to believe that they do not have a choice to object under Article 6.1 f. It has not been possible to object to the processing in the first layer, and there has been no other simple way to exercise the right to object to the processing. The only option to object has been hidden in the banner. It has also not been possible to refuse cookies in the first layer, and the company has thereby made it more difficult to refuse the processing of personal data. The design of the cookie banner, through color choices, contrast, and links, has also been misleading, which has meant that it has not been possible to give informed and voluntary consent in accordance with the Data Protection Regulation. This also violates the principle of transparency and information.

Aller has stated the following. At the specified time in 2021, Aller used both legitimate interest and consent as legal bases, following recommendations from the company's Consent Management Platform (CMP) provider. This was to comply with both the requirements of the Data Protection Regulation and to adhere to the recommendations of the Interactive Advertising Bureau (IAB). Legitimate interest was thus retained, but the company made adjustments in accordance with IAB's requirements and adapted the text by explicitly mentioning the requirement for consent in the cookie banner. Aller's assessment is that at least since 2023, only consent is the legal basis. Aller has only retained two purposes that are always active: necessary cookies and the visitor's privacy choices.

The complainant has been given the opportunity to comment on Aller's account and has stated that the parts of the complaint concerning the ability to refuse cookies in the first layer, misleading link design, misleading color and contrast on buttons, and that it has not been as easy to withdraw consent as it is to give consent have been addressed. The complainant has also asserted that Aller does not have a legal basis to store information about visitors who have not consented and that the company shares this information with other companies. In support of this, the complainant has submitted screenshots from Aller's website from 2024.

Scope of the case

The Swedish Post and Telecom Authority is the sole competent supervisory authority over the Act (2022:482) on Electronic Communication (LEK), which sets specific requirements for the storage of cookies in terminal equipment or the collection of data from such equipment. The processing of personal data that occurs after collection, such as analysis or profiling, is, however, covered by the rules of the Data Protection Regulation, where IMY is the competent supervisory authority. IMY's review has therefore been limited to the processing of personal data that has occurred after the data has been collected and the deficiencies alleged in the complaint regarding this subsequent processing. During the handling of the case, the complainant has stated that the issues regarding the ability to refuse in the first layer, misleading link design, misleading color and contrast on buttons, and that it has not been as easy to withdraw consent as it is to give consent are now addressed. IMY therefore finds no reason to investigate this further.

IMY's examination concerns the question of whether Aller had a legal basis to process the complainant's personal data through the use of cookies on its website on May 21, 2021.

The complainant has, in connection with the comments on Aller's account, raised new objections against Aller's processing of personal data concerning the design of the cookie banner in 2024. IMY assesses that the complaint has been investigated to an appropriate extent without expanding to include these issues and will therefore not address these in the case.

Swedish Data Protection Authority

Case Number: IMY-2023-16452

3(6)

Date: 2025-04-28

Justification of the Decision

Applicable Provisions, etc.

According to the principle of accountability, the data controller must be able to demonstrate that the processing of personal data is carried out in accordance with the data protection regulations.²

The processing of personal data is only lawful if one of the conditions set out in Article 6 of the General Data Protection Regulation (GDPR) is met. Legitimate interest under 6.1 f is one of the lawful grounds that can support the processing of personal data.

For processing to rely on balancing of interests (also called legitimate interest) under Article 6.1 f of the GDPR, three conditions must be met. First, the data controller or a third party must have a legitimate interest. Second, the processing of personal data must be necessary to fulfill the legitimate interest in question. Third, the interests or fundamental rights and freedoms of the data subjects must not outweigh the legitimate interests (balancing of interests).³

Recital 47 states that a legitimate interest may exist, for example, when there is a relevant and appropriate relationship between the data subject and the data controller, such as when the data subject is a customer of or works for the data controller. A legitimate interest requires, in all circumstances, a careful assessment, which includes whether the data subject, at the time of the collection of personal data, can reasonably expect that processing for this purpose may occur. The interests and fundamental rights of the data subject could particularly outweigh the interests of the data controller if personal data is processed under circumstances where the data subject cannot reasonably expect any further processing.

In the EDPB's guidelines for the processing of personal data based on Article 6.1 f of the GDPR, it is stated that three criteria must be met for a legitimate interest to be considered present.⁴ The interest must be lawful, meaning it must not conflict with either EU law or national law. That an interest is

commercial does not exclude it from being legitimate; what is decisive for this assessment is whether the interest is lawful, specific, and constitutes a real and actual interest.⁵ Furthermore, the interest must be clearly and unambiguously formulated and pertain to a real interest that exists at the time of processing and is not hypothetical.⁶

Assessment

The question in this case is whether Aller could support the processing of the complainant's personal data on May 21, 2021, based on Article 6.1 f of the GDPR.

2 Articles 5.2 and 24 of the GDPR.

3 See the Court of Justice of the European Union's judgments of May 4, 2017, *Rīgas satiksme*, C-13/16, EU:C:2017:336, paragraph 28, December 11, 2019, *Asociația de Proprietari bloc M5A-ScaraA*, C-708/18, EU:C:2019:1064, paragraph 40, June 17, 2021, *M.I.C.M.*, C-597/19, EU:C:2020:1063, paragraph 106, and July 4, 2023, *Meta Platforms et al.*, C-252/21, EU:C:2023:537, paragraph 106.

4 See EDPB's Guidelines 1/2024 on processing of personal data based on Article 6(1)(f) GDPR, version 1.0, paragraph 17.

5 See the Court of Justice of the European Union's judgment of October 4, 2024, *Koninklijke Nederlandse Lawn Tennisbond*, C-621/22, EU:C:2024:857, paragraph 49.

6 See the Court of Justice of the European Union's judgment C-708/18, paragraph 44.

Swedish Authority for Privacy Protection

Case Number: IMY-2023-16452

4(6)

Date: 2025-04-28

Aller provides information that cookies are used on the website in a so-called cookie banner, which is displayed when the user first visits the website. In the first layer of the cookie banner, as it appeared at the time of the complaint, there was a button to consent and a link to show purposes. The information text in the first layer stated that one can consent or manage their choices, including the right to object where legitimate interest is used. The option to object was not available in the first layer of the banner. It was further stated that the company processes data to offer the use of precise geodata, create personalized advertising, and create a personal profile. To refuse all types of processing, a data subject first needed to refuse consent and then proceed to find the option to object to processing for certain purposes.

The following assessment is based on this cookie banner and the company's then-current website. Aller has indicated in its cookie banner that the company has a legitimate interest in processing data for profiling and precise geodata. In its communication with IMY, the company has not argued that it actually had a legitimate interest in processing the data. Instead, Aller referred to its CMP provider recommending the company to have both consent and legitimate interest as legal grounds for this type of personal data processing. Considering the accountability obligation in the General Data Protection Regulation, IMY does not believe that a data controller can disclaim responsibility for ensuring that there is a legal basis for the company's personal data processing by referring to a supplier's recommendations. IMY therefore concludes that Aller is responsible for ensuring that there is a legal basis for the processing of personal data at the company.

IMY believes that the requirement for consent to collect data via cookies⁷ provides particularly strong privacy protection and gives data subjects the opportunity to choose and control how their personal data is used. If the collected data is subsequently further processed with legitimate interest as the legal basis, this particular privacy protection risks being undermined. This specific privacy protection for the data subject is therefore something that should be taken into account in a balancing of interests under Article 6.1 f.

During IMY's investigation of the case, Aller has not clearly articulated what their legitimate interest for the relevant personal data processing was or how a balancing of interests was to have been conducted. IMY's assessment is that the complainant cannot be considered to have been able to expect such personal data processing merely by visiting Aller's website. Furthermore, the complainant could only object to processing after having refused consent in the cookie banner. IMY's assessment

is, against this background, that Aller has not demonstrated that the company could support the personal data processing on the legal basis of legitimate interest. In summary, Aller has violated Article 6.1 f of the General Data Protection Regulation by processing the complainant's personal data without a legal basis.

Choice of Intervention

According to Article 58.2 and Article 83.2 of the General Data Protection Regulation, IMY has the authority to impose administrative fines in accordance with Article 83. Depending on the circumstances of the individual case, administrative fines may be imposed in addition to or instead of the other measures referred to in Article 58.2, such as orders and prohibitions. Furthermore, Article 83.2 outlines the factors to be considered when deciding whether administrative fines should be imposed and when determining the amount of the fine. If it concerns a minor infringement, IMY may, as stated in Recital 148, instead of imposing a fine, issue a reprimand under Article 58.2 b. Consideration should be given to aggravating and mitigating circumstances in the case, such as the nature, severity, and duration of the infringement, as well as previous relevant infringements.

IMY notes the following relevant circumstances. The current supervision involves an examination of whether Aller had a legal basis to process an individual complainant's personal data. IMY has assessed that the company did not have a legal basis to process the complainant's personal data. Aller has made certain changes to its cookie banner after IMY initiated supervision and now states that they have consent as the legal basis. The company has not previously been found to have violated the General Data Protection Regulation.

In a balanced assessment, IMY believes that this constitutes a minor infringement in the sense referred to in Recital 148 of the General Data Protection Regulation, which warrants that Aller Media AB be given a reprimand under Article 58.2 b of the General Data Protection Regulation for the identified infringement.

This decision has been made by the unit manager Albin Brunskog after presentation by the lawyer Michaela Prieto Ceric

Albin Brunskog

Appendix

Complainant's Personal Data

Copy to

Data Protection Officer

Swedish Authority for Privacy Protection

Case Number: IMY-2023-16452

6(6)

Date: 2025-04-28

How to Appeal

If you wish to appeal the decision, you must write to IMY. In your letter, specify which decision you are appealing and the change you are requesting. The appeal must be received by IMY within three weeks from the date you were notified of the decision. However, if you are a party representing the public interest, the appeal must be submitted within three weeks from the date the decision was announced. If the appeal is submitted in a timely manner, IMY will forward it to the Administrative Court in Stockholm for examination.

You may email the appeal to IMY if it does not contain any sensitive personal data or information that may be subject to confidentiality. The authority's contact details are provided on the first page of the decision.